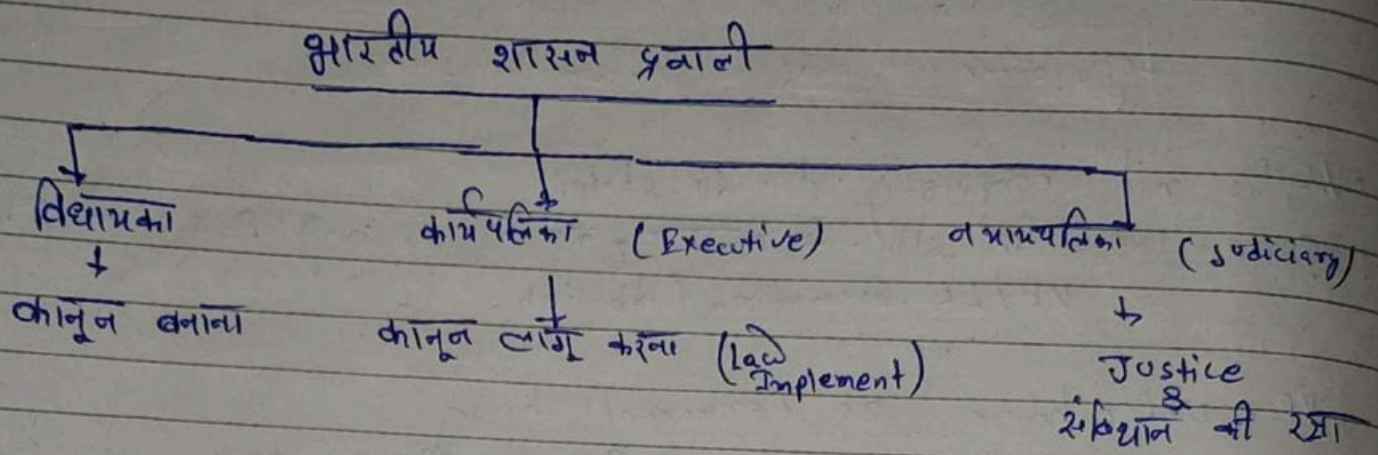


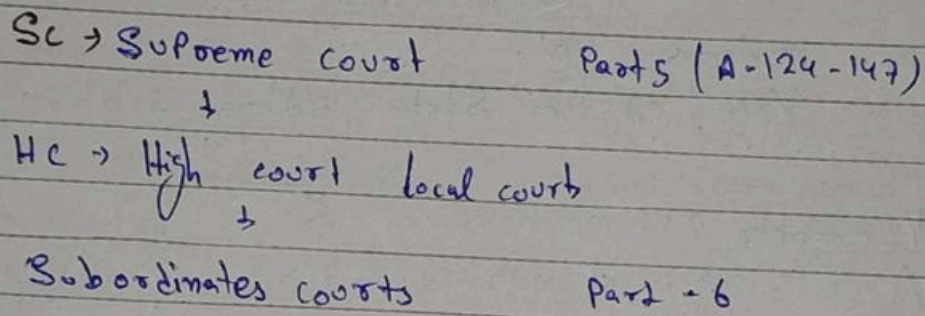
Judiciary

Part - 1

- Judiciary System in India Inspiration from U.S.A.

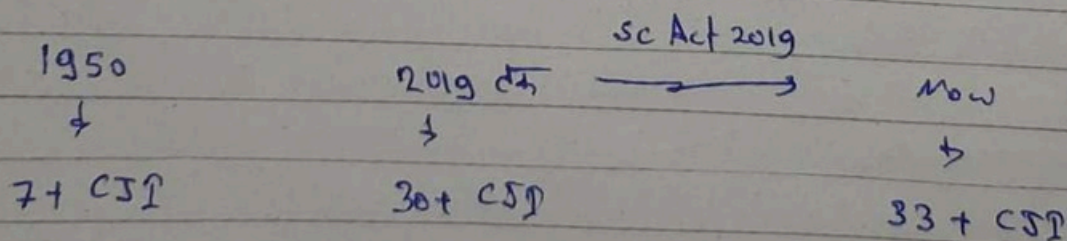


India - Integrated Judiciary system.



SC Supreme court

- In the original constitution of 1950 it is mentioned that SC will have 1-CJI and 7 other Judges
- Number of Judges / Power / Salary will be controlled by itself



• Eligibility: —

- ⇒ Must be Indian citizen
- ⇒ He must served as a Judge in one or more High court for 5 yrs. in a row.
or
- ⇒ He/she have been advocate for one or more High court for 10 yrs
or
- ⇒ He should be distinguished jurist in the opinion of the president.
- ⇒ The president appoints chief Justice of ~~India~~ Supreme court and the highest among the Judges
- ⇒ In 1993 → SC gave a majority decision → only senior most Judge of the SC would be appointed to the Chief Justice of India.
- ⇒ Other Judges of the Supreme court are appointed by president on the advice of CJI.
- ⇒ Article 126 → When chief Justice is absent → President appoints Acting CJI.
- ⇒ Article 127 → The appointment of Ad hoc Judges is done by chief Justice → on the prior consent of the president.
- ⇒ A Judge of High court who is qualified to be appointed as a Judge of the SC can be appointed as an ad hoc Judge.

Removal of Judges :-

Article 124 (4) → He/she can be removed for.

i) Proven misbehaviour

ii) Incapacity

Process:

• For removal of Judge of SC or HC → Impeachment

Salary and Allowances :-

Article 125 (1) → Salary of the Judges will be decided by Parliament.

Sc. Hc. Amendment Act 2009 → 1 Lakh for CJI
90k for other Judges

" " " " 2018 → 2.80 Lakh for CJI
2.50 for other Judges

Collegium System: At a glance

High court

↓
Sub ordinate courts at the district level

↓
District and Session court

↓
Civil

↓
District court

↓
Sub-courts

↓
Chief Junior civil Judge court

↓
Criminal

↓
Session court

↓
Judicial magistrate court (P.S.)

↓
Judicial Magistrate court (2nd Sec.)

High court

part - 6 Article - (214 - 232)

1st Hc → 1862 → Kolkata, Bombay, Madras
2nd " , 1866 → 1868 → Allahabad, etc.

Article 214 → हर state के लिए 1 High court होगी

" 216 → Hc Formation

" 231 → states के लिए अपने अपने Hc बनाये जा सकते हैं
formation की decision संसद लेगा

⇒ Highcourt don't have fixed no. of Judges.

Qualification of the Judges:

→ Article 217 (2)

• Has worked as Judicial officer in Indian territory for 10 yrs or more

OR.

⇒ Should have been advocate in High court for minimum 10 yrs

Appointment:—

- ⇒ Chief Justice of HC Appointed by President with Advice of CJI and Governor of state.
- ⇒ other Judges appointed by President advice of CJI and Governor and C.J.HC.

Term of office of Judge

⇒ till 62 yrs of Age

OATH

⇒ Governor of each state OATH taken by Judges of HC

Transfer

⇒ President with Advice of CJI can transfer HC Judge